

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402597	MCLAREN VS KND DEVELOPMENT 54, LLC DBA KINDRED HOSPITAL RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling: **CONTINUE the hearing to July 23, 2026, to allow parties to meet and confer.** Defendant has failed to satisfy its obligation to meet and confer in person or by telephone with Plaintiff prior to filing the demurrer. Moving party may not waive the requirements set forth in CCP § 430.41

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502477	BRYANT VS HARTS	MOTION FOR EVIDENTIARY HEARING RE PROVE UP DEFAULT JUDGMENT TO QUIET TITLE TO REAL PROPERTY

Tentative Ruling: Motion GRANTED. No opposition filed. Prove-up hearing set for July 10, 2026, at 9:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506656	CONTRERAS VS FCA US LLC	MOTION TO COMPEL PERSON MOST KNOWLEDGEABLE DEPOSITION AS TO FCA US LLC THE DEPOSITION OF DEFENDANT FCA US, LLC'S PERSON (S) MOST KNOWLEDGEABLE AND REQUEST FOR PRODUCTION OF DOCUMENT AND SANCTIONS;

Tentative Ruling:

GRANT the motion. Order Defendant to produce its PMK deponent and produce all documents responsive to Plaintiff's 3/23/26 amended notice of deposition within 30 days. Sanctions are awarded against Defendant's counsel, payable within 30 days.

Plaintiff Adriana Contreras ("Plaintiff") filed this lemon law action, alleging that she purchased a pre-owned 2021 Jeep Wrangler Unlimited Sahara 4XE on 6/19/25 with battery and charging system defects. The operative complaint, filed 12/3/25, asserts:

(1) breach of express warranty; (2) breach of implied warranty; (3) Civ. Code §1793.2(b); and (4) Civ. Code §1796.5. Trial is not set.

Plaintiff now moves to compel the deposition of Defendant FCA US LLC's ("Defendant") PMK. On 1/16/26, Plaintiff served a notice of deposition for 1/28/26, but Defendant did not produce a witness. The parties later agreed to a deposition date of 5/15/26, which Plaintiff contends is the statutory deadline for initial depositions in this action under the expedited discovery procedures. (CCP §871.20 et. seq.) Plaintiff served an amended notice of deposition on 3/23/26 setting the deposition for the agreed-upon date. On 5/11/26, 4 days before the scheduled deposition, Defendant served objections and did not produce a witness, stating that its PMK is unavailable. Plaintiff seeks \$2,500 in sanctions.

In opposition, Defendant argues that it has met and conferred in good faith by agreeing to the 5/15/26 deposition date. It asserts that the designated PMK had become unavailable shortly before the deposition. Defendant asserts that Plaintiff did not act in good faith by filing the motion 8 days later, without further meet-and-confer. For the document production, Defendant argues that it "has fully complied by producing all responsive documents in its initial document production served on March 16, 2026, consisting of 1,828 documents, and further supplemented its responses concurrently with this motion." Defendant argues that Plaintiff failed to show good cause.

In reply, Plaintiff argues that Defendant did not show good faith given the months of effort to secure a deposition date. Plaintiff asserts that after Defendant canceled the agreed-upon deposition, it promised to provide alternative dates but failed to do so. Plaintiff further asserts that Defendant had timely responded to this motion and offered a date that works, court intervention would have been unnecessary.

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (CCP §2025.280(a).)

Effective January 1, 2025, the Legislature passed A.B. No. 1755, which amended Song-Beverly actions. This action is governed by accelerated discovery timeline under CCP §871.20 et seq. for motor vehicle warranty actions. The statute provides that all parties have the right to conduct initial depositions, each not to exceed two hours, of the manufacturer's PMK, which must be completed "within 120 days after the filing of the [Defendant's] answer." (CCP § 871.26(c).) Defendant filed its answer on 1/15/26. Thus, the statutory deadline for its PMK deposition was 5/15/26.

CCP §2025.450(a) states: "If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a **valid objection under Section 2025.410**, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or

tangible thing described in the deposition notice.” (emphasis added.) The parties are required to meet and confer, or in the case of a non-appearance, the moving party inquired about the non-appearance. (CCP §2025.450(b)(2).) Plaintiff engaged in meet-and-confer efforts over several months. (Acosta Decl., ¶¶ 6-9.)

Defendant served an objection based on the witness’s unavailability. For the examination categories, Defendant solely objected that the categories and document requests are vague, ambiguous, overbroad, burdensome, attorney-client privilege, attorney-work product doctrine, documents prepared for litigation, evidence of subsequent remedial measures, and other boilerplate objections.

Here, Defendant’s objections are not valid. An objection to a deposition notice is proper only if based on any error or irregularity in the notice itself. (CCP §2025.410(a).) These include service, location of the deposition, time limits, etc. A party may challenge the production via an inadequate description or unjustly burdensome. (CCP §2025.410(a), (c).) Any other challenge such as privilege, relevance, etc. may be challenged via protective order. (Weil & Brown, California Practice Guide: Civil Procedure Before Trial §8:531 (Rutter Group 2026).) Serving an objection is not a substitute for a motion for protective order. (See *Snyder v. Superior Court* (1970) 9 Cal.App.3d 579, 586 (applying former CCP §2021).) Or, Defendant could have filed a motion to quash. (CCP §2025.410(c).) Unavailability is not a valid objection. Nor has Defendant shown that inadequate description or unjustly burdensome applies to any of the categories at request. The opposition merely contends it produced documents, and that Plaintiff did not meet and confer in good faith. Therefore, its objections based on unavailability, and its objections to the document requests, were not valid objections.

Accordingly, the court should grant the motion and order Defendant to produce a PMK witness and documents within 30 days.

Plaintiff requests \$2,500 sanctions as part of the motion. (CCP §871.26(j)(2).) The statute provides that “a court **shall** impose... a two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney... for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (*Id.*, emphasis added.) The sanction is mandatory unless “the party failing to comply... shows good cause for the noncompliance.” (*Id.*, § 871.26, subd. (j).)

Here, Defendant argues that the witness’ sudden unavailability constitutes good cause. However, Defendant did not make a proactive effort to reschedule after both cancellations and had still not proposed new dates when Plaintiff filed its reply. This negates the good cause exception. Statutory award of \$2,500 in sanctions against the defense attorney.